

Note on Public International Law

CHAPTER 1: INTRODUCTION

public international law is the law that applies to *international actions*, whether committed by States, international organizations, or even individuals.

International laws are not written down in one book like the Civil Code of Ethiopia. There is no international government that has authority to pass such laws.

The domestic laws of Ethiopia – including the FDRE Constitution – are, for the most part, not relevant in deciding Ethiopia's international obligations in disputes before international tribunals.

the domestic laws of Ethiopia are extremely important in determining how international laws will apply in the domestic courts of Ethiopia. Domestic courts often refer to treaties (and international customs) when deciding disputes between the individual litigants before them.

CHAPTER 2: THE STATE SYSTEM

The stability of the State System rests on the stability of States, and for this reason international law places a great deal of emphasis on a State's continued legal existence and relative permanence of its borders.

The State system came into being with the birth of the so-called “nation-state” in Europe in the 16th and 17th centuries.

The modern international system is still a “State System,” composed of States, but many new actors now play a role in international relations. Principal among these new actors are international organizations like the United Nations and the WTO.

State Sovereignty

Part A: Definition of Sovereignty and History

A State's sovereignty is its *independence*. The word “sovereign” implies some ultimate authority, a master with no master above him, a free and autonomous entity.

-State must speak with one voice at the international level

- other States should not concern themselves with certain internal matters of a sovereign State like the type of government a State adopts – whether monarchical, tyrannical, democratic, socialist, or otherwise – or the State's religion or the way a State treats its citizens.

State sovereignty and the modern nation-state really came into being in 1648 with the Treaty of Westphalia that ended the 30 Years War in Europe. The War arose in part out of tensions between Catholics and Protestants and fears of civil strife between these two religious groups.

The Treaty of Westphalia resolved religious tensions by giving each State the power to determine religious affairs within its own territory (birth of the modern *secular* state.)

Part B: Erosion of State Sovereignty

eroded by international laws and international bodies; that such laws and such bodies tend to restrain the activities of States from the outside, WTO, ILO

Part C: Theories of State Behavior

(1) interest-based theories (states act rationally to maximize their interests.) including realism, institutionalism, and liberal theory; and

(2) norm-based theories including constructivism and legal process theories.

***Realism**'s core assumptions can be variously classified

(1) states are key actors in world politics;

(2) states can be treated as homogeneous units acting on the basis of self-interest;

(3) analysis can proceed on the basis of the assumption that states act as if they were rational; and

(4) international anarchy – the absence of any legitimate authority in the international system – means that conflict between self-interested states entails the danger of war and the possibility of coercion...

* **institutionalism**- institutions could enable states to achieve their own objectives more efficiently. Institutions would alter state strategies by changing the costs of alternatives; institutionalization could thus promote cooperation.

institutions mattered because they could provide information, monitor compliance, increase iterations, facilitate issue linkages, define cheating, and offer salient solutions.

* **Constructivism**- seek to show that the preferences of individuals, and therefore state interests, can be influenced by international law and institutions.

State Formation and the Self-Determination of Peoples

Part A: Legal and Political Issues of Statehood

The 1933 Convention on the Rights and Duties of States (known as the Montevideo Convention), sets out **four simple criteria for statehood**.

a) *permanent population* - no minimum number of inhabitants necessary to make a State.

b) a defined territory- even though its borders are disputed LIKE Israel.

c) government;

d) capacity to enter into relations with the other states.

Increasingly, States and international organizations like the European Union and the United Nations are making express demands that must be met by new States before these States will be

recognized. EG. promises by the new States to support human rights, prevent nuclear arms proliferation, etc.

Part B: The Right of Self-Determination

This principle was articulated first as a right of colonized people to self-government, but it has since been used to justify the creation of States in other ways, as by secession.

The right of self-determination was affirmed as an international law when it was written into the Charter of the United Nations in 1945.

Nowhere does the Charter specifically call for freedom for colonized territories. Apart from the undefined “right of self-determination,” the UN Charter in Article 73 laid out some specific duties of colonizing countries, “to promote to the utmost... the well-being of the inhabitants of these [colonial] territories, and, to this end... to develop self-government, to take due account of the political aspirations of the peoples, and to assist them in the progressive development of their free political institutions...” These are ideal goals for political freedom, not specific requirements that can be measured.

Most of the international HRs instruments that include the right of self-determination gloss over its various contradictions and leave its definition vague.

Again, the right is not clearly defined in z ACHPR.

Two very important General Assembly resolutions make reference to the right of peoples to self-determination. The first, passed in 1960, is the *Declaration on the Granting of Independence to Colonial Countries and Peoples*.

The second resolution, passed in 1970, is the *Declaration on Principles of International Law Concerning Friendly Relations and Co-operation Among States in Accordance with the Charter of the United Nations*.

This resolution seems to reinstate the tension between self-determination and territorial integrity. a State that does not comply with the principle of equal rights and self-determination (presumably a State that denies certain political rights to minorities) has forfeited its right to territorial integrity. Z Canadian supreme Court over Quebec.

Unlike the international instruments, Ethiopia’s Constitution is quite clear about what the right of self-determination means, who the “people” are who can claim this right, and how this right can be lawfully exercised art 39.

Z Constitution uses a mixture of subjective and objective criteria to define the beneficiaries.

Part C: State Territory and Borders

Africa have been decided by the principle of *uti possidetis, ita possidetis* (or just *uti possidetis* for short), a Latin phrase which means literally, “[you may] keep what you had.”

By this is meant that former colonies, on gaining independence, will keep the borders established previously by the colonizing power.

The principle of *uti possidetis* seems to have been first invoked and applied in Spanish America, inasmuch as this was the continent which first witnessed the phenomenon of decolonization involving the formation of a number of sovereign States on territory formerly belonging to a single...State.

(1) identify the issue, (2) state the rule, (3) apply the rule to the facts, and (4) give a brief conclusion. This is the so-called “IRAC” method.

Recognition of Governments

As an expression of disapproval, other governments may refuse to recognize the government, cut off diplomatic contacts, suspend travel to that country, or cut off trade and foreign aid.

The issue of recognition is separate from the issue of whether to continue diplomatic relations, travel, and trade.

- **“Tobar Doctrine”** The U.S. for some time applied this doctrine which said that, in order to promote democratic transfers of power, *new governments formed by use of force or subversion of legitimate democracies would not be recognized.*

- **Estrada Doctrine** (Joseph Estrada theory) (Mexican foreign minister), there are situations when the *international community must determine the legitimacy of a new government. What is imp't in this theory 1st to recognize state, not gov't. once state is recognized, then no need to recognize the gov't.*

Chapter 3: International Organizations and Other International Actors

an international organization is an organization, typically established by treaty, whose members are States or other international organizations.

The prototypical international organization is the United Nations. The UN has both more power and less power than the student might expect. regional organizations OAS, AU, EU

International Civil Aviation Organization. WTO, IMF, WB, WHO & the International Telecommunication Union.

Characteristics of International Organizations

- have attained a special status in international law that other organizations like NGOs do not have.

- Like States, international organizations can enter into treaties, enjoy certain privileges and immunities, as for example those enjoyed by UN diplomats traveling abroad on UN business.

- States have privileges and immunities that are general whereas international organizations have only such privileges and immunities as are necessary to carry out the organization's functions.

- An international organization cannot invoke “sovereign immunity” – immunity from liability in foreign courts in cases involving official acts – because an international organization is not a sovereign. Also, only States can appear before the International Court of Justice in contentious cases.

****Personality of IO/ Elements to be considered*** - ICJ advisory opinion 1949 on Count Bernadotte Assassination.

- Existence of organization like executive, jud, leg
- privilege and immunities
- treaty making
- property owning power

The Structure of the United Nations

The General Assembly (GA) is the Parliament of the UN, but it is a Parliament with little or no legislative power. GA is plenary body. GA resolutions are like recommendations to Member States – the resolutions are not binding.

The Security Council (SC), compared to the GA, has more power, but it is exercised within a narrower scope. In fact, the SC passes both non-binding resolutions and binding resolutions. The binding resolutions may be passed only when the SC is taking action “for the maintenance of international peace and security.” (15 members – 5 permanent members and 10 rotating members with 2-year terms)

The Secretariat is composed of all the administrative staff of the UN and headed by the Secretary-General. the role of the Secretary-General as a spokesman.

The International Court of Justice functions under its own statute which is “an integral part” of the Charter and is annexed to it, has *fifteen* judges all from different States.

Two types of cases come before the Court – contentious cases between States and requests for advisory opinions from organs of the UN or from specialized agencies.

ECOSOC functions like a *mini GA* with a special focus on economic, social, and humanitarian issues. makes studies and reports and may bring matters to the attention of the GA.

The Trusteeship Council was created to monitor those colonies placed under the administrative authority of another State following World War II. today it is out of going..

* The UN has many problems in practice – most significantly the problem of preventing aggression and war by States – but the major *structural* problems are two. **First**, there is some confusion as to the respective areas of authority of the SC and the GA. **Second**, there is some question as to whether the ICJ can review the activities of the SC and GA and pass judgment on them.

The African Union

May 26, 2001, marked the Constitutive Act of the African Union entered into force.

The organs and institutions of AU are;

- (1) the Assembly of the Union;
- (2) the Executive Council;
- (3) the Pan-African Parliament;
- (4) the Court of Justice;
- (5) the Commission;
- (6) the Permanent Representatives Committee;
- (7) the specialized technical committees;
- (8) the Economic, Social and Cultural Council; and
- (9) the financial institutions (African Central Bank, the African Monetary Fund, and the African Investment Bank)

* Although the organs and institutions forming its structure are provided for by the Act and offer great potential for the continent, their composition, powers, functions, organization, and rules of procedure have yet to be specified.

* the current state of the African economy is poor.

Other International Actors: NGOs, Corporations, and Individuals

NGOs, corporations, sporting federations, organized religions, regional governments, and international terrorists like ISIS. These non-state actors do not have the status of legal persons at the international level, so they cannot have rights and duties under international law. their activities are governed by national laws.

Three new areas of international law give greater standing to individuals in the international arena – *human rights law*, *international humanitarian law (law of war)*, and *international criminal law*.

CHAPTER 4: INTERNATIONAL CUSTOMARY LAW

Custom is losing its status as a strong source of authority in international law. At least it is agreed now that *treaties* are a stronger source of international law than custom and take precedence over custom.

What is strange about this position, however, is that it is international custom that provides the basis for all treaty law, not the other way around. The principle *pacta sunt servanda*– that a State must abide by its treaty obligations – is an international custom.

From the principle of sovereignty to the treatment of foreign emissaries, the international system is founded on customs.

English and American courts had long consulted treatises on international law as well as the practices of states.

Background Principles and the Hierarchy of Sources in International Law

International law is made chiefly in one of two ways: through agreements between states – ‘treaties’ – or through practice by states that fulfills certain requirements – ‘customary international law.’

the ICJ statute contains a clear list of the sources of international law. Art 38(1) of ICJ statute-

1st International conventions - international custom, the general principles of law recognized by civilized nations (eg. good faith), judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.

*In z principle of *order of importance*, conventions (treaties) will take precedence over custom, and custom will take precedence over general principles of civilized nations. .

*Treaties tend to be more specific and clearer than customs, and certainly treaties are a better expression of the consent of States.

* *treaty provisions may be interpreted according to rules of international custom*

*In the **Lotus principle- States have residual sovereignty or power** in the *absence of international law*.

****Decision ex aequo et bono*** - states can apply to ICJ that not to be based on Int'l law while determining the case. They just can prefer justice, fairness as basis of determination for their case without Int'l law.

* Art. 59 of ICJ Statute - ICJ decisions lack ***precedence***, has only persuasive role

Customary Law: State Practice and Opinio Juris

it is hard to prove that a custom exists. ***So two elements*** must be proven – State practice and *opinio juris*. (elements of custom).

“**State Practice**” indicates the State’s overt behavior (official act). It is repeated and consistent act. Eg. Internal or external action or inaction (silence w/c in principle amount acceptance)

whereas ***opinio juris*** (“subjective” element) means the State’s belief that the practice is legally required as a matter of international law.

Opinio juris concerns statements of belief rather than actual beliefs. treaties and declarations represent *opinio juris* because they are statements about the legality of action, rather than examples of that action.

Opinio Juris is like a State's official stamp that converts that State's casual practice into a binding rule. To have custom, States must not only exhibit a certain practice; they must also believe that the practice is legally required.

Which States Are Bound by Custom?- If a custom is **general**, all States in the world are bound by it. If a custom is regional or local, only States in that region or locality will be bound by it.

States that say and do nothing during the time when a custom is developing will be bound by that custom. The same applies to new States.

The only way that a State can get out of a general custom is by objecting to that custom loudly and continuously during the process of the formation of the custom. A State that does this may obtain "***persistent objector status***."- the State must object when the custom is in the process of forming & the objection must be clear and "persistent."

After a rule of custom has formed, any conduct contrary to the rule is a violation of international law.

Treaties and General Assembly Resolutions as Evidence of Customs

Customary law co-exists with treaty law. First, the treaty may restate an already existing international custom. Second, the treaty may crystallize an emerging international custom. That is, the treaty may be the final recognition of a custom that was previously just in the development stages.

A treaty may be used as evidence of custom along with other things like domestic court decisions and policy documents. the treaty may be the **only** evidence of the custom.

GA resolutions represent the opinion of a majority of States in the world. GA resolutions can be used as evidence of State practice or *opinio juris* for the purposes of establishing custom. However, Unlike treaties, General Assembly resolutions are not binding on States.

GA resolutions have been useful for proving that certain human rights standards have become international custom.

- **Jus Cogens or Preemptory norms**/laws are higher norms of custom

CHAPTER 5: International Law of Treaties

States may enter into contracts, commercial or otherwise, that are governed by the national laws of one of the States involved. A treaty is an agreement governed by international law.

treaties are entered into by States, but international organizations have the capacity to enter into treaties as well.

functions- Some treaties are like international “legislation” – they are open for all States to join and are intended to be universal and binding on all. Their purpose is to establish a set of universal rules to govern State conduct.

Other treaties are more like “contracts.” These treaties are the means by which two or more States transact business

Treaties serves as constitutions for international organizations

Laws-* the customary law “*pacta sunt servanda*” meaning that treaty promises must be kept.

* there is a “treaty on treaties” or in other words a treaty that many States have joined that provides rules for the interpretation and application of treaties. This is the 1969 Vienna Convention on the Law of Treaties (VCLT) (applies to written treaties entered into between States.)

*Even though Domestic laws are important in domestic courts, not in international courts, treaties are binding as law at two levels, the domestic level as well as the international level.

-In domestic courts, domestic laws will color the interpretation and application of treaties.
FDREC Art 9

Treaty Formation

-negotiations over a potential treaty begin when representatives from the State parties meet.

- the State parties must express their consent to be bound by the treaty, may be expressed by signature, exchange of instruments constituting a treaty, ratification, acceptance, approval or accession, or by any other means if so agreed

- For multilateral treaties, it would be impractical to require all negotiating parties to consent before the treaty entered into force. Therefore, multilateral treaties usually provide that the treaty will enter into force upon the consent of a *certain number* of the parties.

* A party *not present at the original* negotiation may be allowed to join the treaty at a later time if the treaty so provides. This is called “accession.”

Interpretation of Treaty Terms

The ultimate goal of a court in interpreting treaty terms is to fulfill the intentions of the parties to the treaty. A court is not there to make the deal fair when a treaty seems unfair.

two basic theories

- 1) the objective approach, requires that we take the parties at their word and interpret treaty terms according to their ordinary meaning and as an ordinary person would understand them.
- 2) the subjective approach- It is possible that the parties to the treaty had some special understanding as to the meaning of terms that is not found in a dictionary. Thus, a *court should look at anything that might indicate what the parties were thinking* – their behavior, letters, and the drafting history of the treaty.

3) The approach of the VCLT (Vienna Convention on Law and Treaties) –is a combination of the objective and subjective approaches- A treaty shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose.

* The VCLT has rather specific rules in regard to the use of drafting history in treaty interpretation.

* ***Additional Aid - Travaux preparatoires*** - preparatory works/circumstances before, during and after conclusion

Invalidity of Treaties and Treaty Termination

a State cannot unilaterally terminate a treaty and simply pay damages for the unlawful breach. The treaty will continue in force even after payment of damages by the breaching party, unless of course the non-breaching party opts to terminate the treaty

In the absence of agreement among the parties as to termination, the default rule is that termination is possible only in four situations of termination of treaties.

(1) material breach by the other party either bilateral or multilateral,

(2) impossibility of performance, Conclusion of letter of treaty

(3) fundamental change of circumstances (*rebus sis stantibus*) such that it no longer makes sense to continue with the treaty (eg.) a new rule of *jus cogens* that emerges some time after the treaty is already in force and that conflicts with the treaty.

(4)- Severance of diplomatic relations. eg. Eth vs. Eritrea

Treaty Reservations

It is a unilateral statement whereby a nation tries to exclude or modify the legal effect of a provision of a treaty while still joining the treaty. A State may want to ratify a treaty, but it disagrees with one provision in the treaty.

Reservations must be distinguished from “understandings” and “declarations.” Unlike reservations, *understandings and declarations are interpretive statements* that are not meant to change the treaty terms but rather clarify what that party understands the treaty to mean.

CHAPTER 6: State Responsibility

Meaning of State Responsibility

Until recently, the theory of the law of state responsibility was not well developed. The position has now changed, however it does not replace customary international law, with the adoption of the **Draft Articles on the Responsibility of States for Internationally Wrongful Acts** ("Draft Articles") by the International Law Commission (ILC) in August 2001.

State responsibility is a fundamental principle of international law and it lies on the understanding that states are sovereign and equal. It provides that whenever one state commits

an internationally unlawful act against another state, international responsibility is established between the two.

The nature of State Responsibility (characteristics or requirements)

- the existence of an international legal obligation in force as between two particular states;
- there has occurred an act or omission which violates that obligation and which is imputable to the state responsible; and
- loss or damage has resulted from the unlawful or omission.

The Question of Wrongfulness

*The principle of objective responsibility ('risk' theory) maintains that the liability of the state is strict. Once an unlawful act has taken place, which has caused injury and which has been committed by an agent of the state, that state will be responsible in international law to the state suffering the damage irrespective of good or bad faith(intention or negligence).

*the subjective responsibility concept (the '*fault*' theory) which emphasizes that an element of intentional or negligent conduct on the part of the person concerned is necessary before his state can be rendered liable for any injury caused.

Imputability (mamekagne OR malakek)/Attribution- is the legal fiction which assimilates the actions or omissions of state officials to the state itself and which renders the state liable for damage resulting to the property or person of an alien. it is objective responsibility.

Ultra vires acts-The act of officials of a state may result in the responsibility of a state even when the former have acted beyond their authority.

Although private individuals are not regarded as state officials so that the state is not liable for their acts, the state may be responsible for failing to exercise the control necessary to prevent such acts.

State Control and Responsibility- if z person or group of persons is in fact acting on z instructions of, or under z direction or control of that State in carrying out z conduct, z state is liable.

Where a state subsequently acknowledges and adopts conduct as its own, then it will be considered as an act of state under international law entailing responsibility, even though such conduct was not attributable to the state before hand.

Consequences of Breach and Reparation

The breach of an international obligation entails two types of legal consequences. Firstly, it creates new obligations for the breaching state, principally, duties of cessation(primary demand)and non-repetition and a duty to make full reparation(compensation), Restitution(in kind like returning ships)and formal Apology

Second, create new rights for injured states, principally, the right to invoke responsibility and a limited right to take countermeasures.

* If illegal actions are continuing, the state has a duty to cease. The state also has duties to make reparation, which could involve restitution, compensation, or satisfaction.

CHAPTER 7: War and the Prohibition on the Threat or Use of Force

History of use of force: from the 'Just War' to the United Nations

Christianization of the Roman Empire and the ensuing abandonment by Christians of pacifism (war is a mistake, any disagreement must avoid viz consensus) give rise to the doctrine of just war. In those days the doctrine was force could be used provided it complied with the Divine Will.

But with positive and the definitive establishment of the European balance of power system after the peace of Westphalia, 1648, the concept of the just war (just cause or sovereign authorization) disappeared from international law as such. States were sovereign and equal, and therefore no one state could presume to judge whether another's cause was just or not. Peaceful solution for all conflict and no judgment passing

The First World War marked the end of the balance of power system and raised afresh the question of unjust war.

The League system did not, it should be noted, prohibit war or the use of force, but it did set up a procedure designed to restrict it to tolerable levels.

The UN Charter's Article 2 provision is regarded now as a principle of customary international law and as such is binding upon all states in the world community. The reference to 'force' rather than war is beneficial and thus covers situations in which violence is employed which fall short of the technical requirements of the state of war.

The Phrase 'Against the territorial integrity or political independence of any state'

No state has the right to intervene, directly or indirectly, for any reason what so ever, in the internal or external affairs of any other state. Consequently, armed intervention and all other forms of interference or attempted threats against the personality of the state or against its political economic and cultural elements, are condemned.

Categories of Force/ Or (*Exceptions to use of Force*)

-Retorsion- *be nidet memeles-* is the adoption by one state of an unfriendly and harmful act, which is **lawful**, as a method of retaliation against the injurious legal activities of another state. *legitimate method of showing displeasure.*

severance of diplomatic relations and the expulsion or restrictive control of aliens, as well as various economic and travel restrictions.

-Reprisals are acts which are in themselves **illegal** and have been adopted by one state in retaliation for the commission of an earlier illegal act by another state.

- **self-defense** - There is extensive controversy as to the precise extent of the right of self-defense in light of Article 51. On the one hand, it is argued that article 51 in conjunction with article 2(4) now specifies the scope and limitations of the doctrine of use of force. *self-defense can only be resorted to 'if an armed attack occurs' and in no other circumstances.*

On the other hand, there are writers who maintain that the opening phrase in Article 51 specifying that 'nothing in the present Charter shall impair the inherent right of...self-defense' means that there does exist in customary international law a right of self-defense over and above the specific provisions of article 51, which refer only to the situation where an armed attack has occurred.

The concepts of necessity and proportionality are at the heart of self-defense in international law.

Necessity - the armed attack that has occurred or is reasonably believed to be imminent requires the response that is proposed.

Proportionality may also require consideration of the type of weaponry to be used, an investigation that necessitates an analysis of the principles of international humanitarian law.

Terrorism- is the systematic use of terror especially as a means of coercion. Most common definitions of terrorism include only those acts which are intended to create fear (terror), are perpetrated for an ideological goal (as opposed to a lone attack), and deliberately target or disregard the safety of non-combatants.

Most government definitions outline the following key criteria: target, objective, motive, perpetrator, and legitimacy or legality of the act.

Collective Security- as an Approach to Peace", is seen as a compromise between the concept of world government and a nation-state.

- First: almost every state, especially all major states, has to be in the collective security arrangement and committed to it for it to work.

- Second: no one state can block the decision making process.

- Third: for sanctions to work, the international economy has to be sufficiently interdependent such that sanctions harm the intended country enough, but do not harm the countries doing the sanctioning.

- fourth for countries to trust collective security, they have to know it works well enough to safeguard their security.

The lines between what is considered "collective defense" and "collective security" have been blurred. "collective security" - avoid grouping powers into opposing camps, and refusing to draw dividing lines that would leave anyone out. (UN Principle)

Humanitarian Intervention- *When and Where to Intervene?

-where the scale of death and suffering is greatest,

-where intervention is unlikely to create great-power conflicts, and

-where a mission can be designed that promises many lives saved at low cost to intervening soldiers.

*How to Intervene?

Should it simply do enough to feed starving people, should it create safe havens for individuals or groups at risk, should it impose a ceasefire line between warring parties—or might it even help one side to win a conflict? **It all depends.**

* Who Should Intervene?

The United States and other western countries can do a great deal to help in this regard by providing modest sums—perhaps a couple hundred million dollars a year in all—for improved training, equipment, and other basic military needs.

CHAPTER 8: International Dispute Resolution

International disputes are solved in two general methods: in the first category lie the International Court of Justice/ICJ and Other International Tribunals and in the second category are Arbitration, Negotiation, and Mediation-diplomatic means of dispute resolution mechanisms.

The International Court of Justice/ICJ/

has a dual jurisdiction: it decides, in accordance with international law, disputes of a legal nature that are submitted to it by States (jurisdiction in contentious cases) binding rulings it gives advisory opinions on legal questions at the request of the organs of the United Nations or specialized agencies authorized to make such a request (advisory jurisdiction).

The jurisdiction of the Court in contentious proceedings is based on the consent of the States/special acceptance to which it is open is needed. No compulsory jurdn. The form in which this consent is expressed determines the manner in which a case may be brought before the Court.

Although without binding effect, the advisory opinions of the Court nevertheless carry great legal weight and moral authority.

The ICJ and the Security Council

In practice, the Court's powers have been limited by the unwillingness of the losing party to abide by the Court's ruling, and by the Security Council's unwillingness to enforce consequences. However, in theory, "so far as the parties to the case are concerned, a judgment of the Court is binding, final and without appeal,"

Other International Tribunals

International war crimes tribunals are courts of law established to try individuals accused of war crimes and crimes against humanity. The war crimes tribunals of Nuremberg and Tokyo.

supports

-they act as a deterrent to potential war criminals.

-they offer a rare chance for the world's leaders and citizens to scrutinize both the deplorable decisions made by particular leaders, and the atrocities committed by the soldiers and agents of those leaders.

- give victims and their families an opportunity to regain a sense of power that may have been lost resulting from a war crime.

-For a country attempting to make a transition from a repressive regime to a democracy, war crimes tribunals offer citizens and leaders the opportunity to put their faith in an equitable rule of law.

criticism

-men like Hitler and Pol Pot, the leaders of violent movements, are never judged by tribunals for what they do. A war crimes tribunal that tries only middle ranking officers, soldiers, and politicians is not as effective as one that tries the mastermind behind the crimes.

-they do not alleviate the underlying causes of the conflict.

-they are ineffective in transforming a fractured society into one of stability and peace (necessarily demonize individuals and sometimes whole groups, further separating parties, instead of building peace.)

-they offer only the victors justice. What was most obviously missing following World War II was not Hitler at Nuremberg, but a trial for Americans, French, British, and Russian individuals who committed acts that would have been considered war crimes had the Allies lost the war. (Hiroshima)

The Creation of an International Criminal Court

officially established on July 1, 2002, and is located in The Hague, The Netherlands. However, all of the world's nations have not ratified the Rome Statute of the I.C.C (United States, Russia, and Japan)

only war crimes committed after the I.C.C.'s establishment can fall under its jurisdiction. only those nations that ratify the document will fall under its jurisdiction.

the establishment of the Court is a significant step toward the creation of an international system of war crimes justice.

CHAPTER 9: National Courts and International Law Issues

Monism - This theory characterizes international and municipal law as a single legal system with municipal law subordinate to international law.

In states adopting this theory, the local courts automatically accept jurisdiction to adjudicate on lawsuits relying on international law principles.

Dualism - This theory regards international and municipal law as separate systems so that the municipal courts can only apply international law either when it has been incorporated into municipal law or when the courts incorporate international law on their own motion.

Customs and Treaties as Part of the Law of Ethiopia- Art 9(1) vs Art 13 (2) of FDREC.

Extradition Treaties/Agreements

There are two types of extradition treaties: list and dualcriminality treaties. The most common and traditional is the list treaty, which contains a list of crimes for which a suspect will be extradited (surrendered).

Dual criminality treaties, used since the 1980s, generally allow for extradition of a criminal suspect if the punishment is more than **one** year imprisonment in both countries.

Many countries, such as Mexico, Canada and most European nations, will not allow extradition if the death penalty may be imposed on the suspect unless they are assured that the death sentence will not subsequently be passed or carried out.

Some countries, such as France, Russian Federation, Germany, Austria, China and Japan, have laws that forbid extraditing their respective citizens.

The refusal of a country to extradite suspects or criminals to another may lead to international relations being strained. Often, the country to which extradition is refused will accuse the other country of refusing extradition.